

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza
Criminal Miscellaneous Case No.28312 of 2023.
Nowroz Zabir Nishat
.....Accused-Petitioner
-Versus-
The State
... Opposite Party
Mr. Md. Emran Khan, Advocate
.... For the accused-petitioner
Mr. Sujit Chatterjee, D.A.G
... For the State

Heard and Judgment on: 31.01.2024.

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused-petitioner should not be enlarged on bail in Kushtia Model Police Station Case No.20 dated 08.11.2022 corresponding to G. R. No.492 of 2022 under sections 302/34 of the Penal Code, now pending in the Court of Chief Judicial Magistrate, Kushtia and/or pass such other or further order of orders as to this Court may seem fit and proper.

Facts in short are that the husband of victim Most. Roksana Khamon Runa lodged ejahar of this case on 08.11.2022 stating that the dead body of his childless wife Roksana Khamon Runa (52) was recovered from her bed room by breaking the door on 07.11.2022. The accused petitioner Nowroz Zabir Nishat was the son of the brother of above victim who raised him as her adopted son. Due to

incoherent and inconsistent behavior and statements of above accused after above occurrence the informant suspects that the accused committed murder of his wife. On conclusion of investigation police submitted charge sheet against accused petitioner but the informant submitted a naraji petition against above police report and the case has been sent for further investigation.

The learned Advocate for the petitioner submits that the petitioner is in custody in connection of this case since 08.11.2022 but the further investigation of this case has not yet been concluded. The petitioner was the adopted son of the victim who was the sister of his father as such the petitioner had no reason to commit murder of his adopted mother. He has been falsely implicated in this case by the husband of the victim.

Mr. Sujit Chatterjee learned Deputy Attorney General raises objection against granting of bail to the accused petitioner at this point of time.

We have considered the submissions of the learned Advocate for respective parties and carefully examined all materials on record.

As mentioned above the petitioner was the adopted son of the childless victim namely Roksana who was a sister of the brother of the victim. The age of the petitioner was only 20 years at the time of the occurrence and he is in custody since 08.11.2022 but the investigation of the case has not yet been concluded. The petitioner did not make any confession nor any incriminating material was recovered from his possession. The dead body of the victim was recovered by breaking open the door of her bed room.

Considering above materials on record, we are inclined to grant bail to the accused-petitioner.

Accordingly, the Rule is made absolute.

Let accused petitioner **Nowroz Zabir Nishat, son of late A.K.M. Nure Aslam Nipu** be enlarged on bail subject to furnishing bail bond to the satisfaction of the Chief Judicial Magistrate, Kushtia.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.